



Appeal Decision

Hearing held on 9 June 2026

Site visit made on 9 June 2026

by G Dring BA (Hons) MA MRTPI MAUDE

an Inspector appointed by the Secretary of State

Decision date: 17 September 2026

Appeal Ref: 6006581

Longdene House Hedgehog Lane, Haslemere GU27 2PH

(Land coordinates 489444 132452)

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Monkhill Ltd and Transform Housing & Support against the decision of Waverley Borough Council.
 - The application Ref is WA/2025/01986.
 - The development proposed is phased development of site to provide 14 residential dwellings comprising up to 8 affordable dwellings and 6 (affordable) detached self/custom build homes together with internal access road, amenity space and landscaping.
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Decision

1. The appeal is dismissed.

Applications for costs

2. An application for costs was made by Monkhill Ltd against Waverley Borough Council. That application is the subject of a separate decision.

Preliminary Matters

3. Different versions of the site address are provided on the application form, appeal form and the Council's decision notice. I have taken the site address above from the application form. Whilst the Council changed the description of development from that provided on the application form, the appellants have confirmed that there was no agreement to that amended wording. I have therefore taken the description of development from the application form, removing wording that does not form an act of development. I have removed reference to bedroom numbers as the appellants have specifically agreed to this change in the Statement of Common Ground.
4. The application was made in outline with only access submitted for consideration. Therefore, any details or information provided in relation to any of the other reserved matters are treated as illustrative only in my consideration of the appeal.
5. National Landscapes were previously known as Areas of Outstanding Natural Beauty (AONB). I will refer to them as National Landscapes or NL throughout my decision in the interests of consistency, except where a document refers to the AONB.

6. The site has been the subject of previous appeal decisions. An appeal decision¹ in 2017 relating to a scheme that included residential development was quashed and redetermined in 2019. A more recent appeal decision² in 2023 also considered a scheme for residential development. I refer to these previous decisions where relevant in my decision.
7. An executed Unilateral Undertaking (UU) dated 30 June 2026 has been submitted. It sets out matters relating to the provision of self-build and custom build plots (SBCB) and affordable housing. The Council had the opportunity to, but made no comments on it. I have taken the UU into account in my consideration of the appeal.
8. Since the hearing, a new National Planning Policy Framework (the Framework) was published in August 2026. This replaces the previous version of the Framework. Both main parties have had the opportunity to comment on the new Framework, and I will take it into consideration in my decision along with any comments made in this regard.

Main Issues

9. The main issues are:
 - the effect of the proposal on landscape character including the effect upon the Surrey Hills National Landscape (NL) and Area of Great Landscape Value (AGLV);
 - whether the proposed development would make adequate provision for affordable housing; and
 - other considerations, including whether the SBCB plots would constitute affordable housing.

Reasons

The effect upon landscape character

10. Approximately 70% of the site is located within the NL with the remainder located within the AGLV. Consequently, I have applied the duty in section 85 of the Countryside and Rights of Way Act 2000 (the Act) as amended by section 245 of the Levelling-up and Regeneration Act 2023 to seek to further the purpose of conserving and enhancing the natural beauty of the NL whilst recognising that it does not prohibit development in such areas, as demonstrated in the cited appeal decision³ at Copythorne Road, Brixham. The site is also located within a designated Green Finger as defined under the Haslemere Neighbourhood Plan: 2013-2032 (NP) adopted November 2021.
11. Policy RE3 of the Waverley Borough Local Plan Part 1: Strategic Policies and Sites February 2018 (LPP1) requires the protection and enhancement of the NL in accordance with national planning policies together with the Surrey Hills AONB Management Plan⁴, applying the same principles to the AGLV, whilst recognising

¹ APP/R3650/W/16/3165974

² APP/R3650/W/22/3295573

³ APP/X1165/W/24/3354507

⁴ Now the Surrey Hills National Landscape Management Plan (2025-2030)

its status as a local landscape designation. Policy H11 of the NP seeks to respect the undeveloped, open character of the Green Fingers.

12. Based on the evidence before me, the discussion at the hearing and my site visit, the proposal would not constitute major development with regard to landscape matters, having regard to Policy N4:2 and Footnote 59 of the Framework. This is due to the limited nature and scale of the proposal along with its likely impact on the purposes of the NL designation. This accords with the views of the main parties and that of the previous Inspector in the 2019 appeal decision (which related to a larger residential scheme).
13. Consequently, Policies N4:1 and N4:4 of the Framework are relevant in this case. Policy N4:1 states that development proposals within Protected Landscapes, such as the NL, should be limited in scale and extent and sensitively located and designed to avoid harm to the statutory purposes and special qualities of the NL. It goes on to state that substantial weight should be placed on the importance of conserving and enhancing the natural beauty of these areas. In respect of the part of the site outside of the NL, Policy N4:4 identifies that development within the setting of Protected Landscapes should be sensitively located and designed to avoid or minimise adverse impacts on the designated areas.
14. Whilst there is dispute between the parties as to whether the remaining 30% of the site that sits outside of the NL represents a significant proportion or not, given its relationship with the remainder of the site, it forms part of the setting of the NL and therefore sensitive consideration of the whole site is required.
15. The Surrey Hills National Landscape Management Plan (2025-2030) (MP) is not part of the development plan but does form a material consideration. It sets out the significance of the NL as a mosaic of farmland, woodland, heaths, downs and commons which has inspired some of the country's greatest artists, writers and architects over the centuries. The special qualities include the presence of woodlands, ancient trees and boundary hedgerows, a patchwork of farmland areas with different features and identities, built heritage and the settlement pattern, tranquillity and darker skies. An overarching aim of the MP is that great weight should be attached to any adverse impact upon the landscape of the NL and that proposals should seek to contribute to the conservation and enhancement of it.
16. The appellant's Landscape and Visual Impact Assessment (LVIA) sets out an assessment of the landscape and visual effects of the proposal. The site is located within National Character Area 120 Wealden Greensand (NCA) and the Hindhead Wooded Greensand Hills (GW5) as identified within the Surrey Landscape Character Assessment (LCA). Both the NCA and LCA include small scale fields bounded by hedgerows and a peaceful landscape with a high sense of enclosure as part of the defining features of the area.
17. The site comprises a sloping grass field, enclosed by mature trees and hedgerows with two existing access points into the field from the private driveway which also serves Longdene House and the dwellings that surround it. Some of the trees are subject to Tree Preservation Orders. A small timber stable is located within the site. Although a temporary builder's compound occupies part of the site, the evidence indicates that the land has historically been managed as grazing land.
18. The parties agree that the baseline for the assessment of landscape matters is that the site is managed grassland due to the time limited nature of the builder's

compound. I concur with this approach. Given its temporary nature, there is no evidence to suggest the current degradation caused by the compound would be permanent or that it would have long lasting effects.

19. The site lies beyond but close to the settlement edge of Haslemere, with existing residential development to the east and north. Alongside the northern boundary is a strip of green space where a public footpath runs from Hedgehog Lane to Grasslands Close. To the south and west are open areas of grassland which connect to other fields that surround a central area which contains Longdene House, The Lodge, Longdene Hall, the Pool House and four other dwellings currently under construction.
20. With the exception of the builder's compound, the site is rural in its character, being largely undeveloped and bounded by vegetation, reflecting both the NCA and LCA characteristics. Whilst in proximity of the settlement edge, when within the site, the presence of nearby development is not overly discernible due to the significant vegetative boundaries. There is a distinct change in the landscape when leaving Hedgehog Lane, and heading along the private driveway, with a clear feeling of being in the countryside with a noticeable sense of peacefulness, rather than being within an urban edge environment. Consequently, the site makes a positive contribution to the rural character of the NL and its setting.
21. The proposal would result in built development on a largely undeveloped field. Whilst a relatively low density scheme could be built out, utilising the existing access points into the field, it would fundamentally alter the character of the site, with it becoming part of the urban townscape rather than the countryside. The outline of the field may still be discernible through the retention and enhancement of the existing vegetation. However, the development would permanently replace part of the pastoral landscape with residential form and associated domestic paraphernalia and activity. The appellants assert that the proposal would result in minor adverse effects on the site. However, the urbanisation proposed would lead to the substantial erosion of the site's rural character, which in turn would result in considerable harm to landscape character.
22. A scheme could be brought forward that responds appropriately to the appearance of the area, taking into account the topography of the site and appropriate external lighting could be required by planning condition. Open space for future residents is also identified as being provided on site. However, these elements of the scheme would not outweigh the overarching harm to landscape character that would result through the urbanisation of the site and the permanent erosion of the open countryside. Furthermore, the introduction of residential development, along with the associated paraphernalia and activity that would inevitably result, would significantly diminish the level of peacefulness that is experienced within the site, taking into account the agreed landscape baseline position. Accordingly, the proposal would result in considerable harm to the landscape character of the site.
23. Beyond the site, views from Hedgehog Lane, the adjacent public footpath, and from nearby residential properties would be very limited due to the substantial boundary vegetation that surrounds the site and the private nature of the access. Visual effects would therefore be localised and limited. However, landscape effects extend beyond visual impact alone.

24. Recent and ongoing residential development has altered the built environment that surrounds Longdene House. Nevertheless, more recent development and the four dwellings under construction are closely related to Longdene House and well contained within a central area. The site and other surrounding fields still wrap around that built development and provide a distinctly rural setting to Longdene House and the development that surrounds it. As a result, the site still contributes positively to the rural landscape that surrounds this group of buildings, whilst also providing a countryside setting to the settlement edge. For these reasons, the site does not appear as an isolated pocket of undeveloped land, but forms an important part of the pattern of the rural landscape in this location.
25. I visited Grasslands Close to the north of the site where around 135 dwellings have been constructed. That development has expanded the settlement edge in proximity of the site. However, the separation of Grasslands Close from the site by the intervening strip of green space, the extensive vegetative boundary and the noticeable change in levels means that there is little visual relationship between that part of the settlement edge and the site.
26. There would be no physical changes to land outside of the confines of the site itself. However, the proposal would harmfully diminish the network of open fields and interrupt the established rural landscape pattern, eroding the countryside setting of the development around Longdene House and at the edge of the settlement. Whilst the visual effects would remain localised, the impact on landscape character would be appreciably greater.
27. The appellants assert that whilst the site is partially within the NL and AGLV, it is considered to be at the lower end of the environmental scale within these designations. Nevertheless, part of the site is within the NL and the remainder is within its setting. The rural characteristics of the site do positively contribute to the NL and its setting in this location. The proposal would neither conserve nor enhance the NL or its setting and harm to it would not be avoided or minimised.
28. The 2019 appeal decision⁵ dismissed a scheme that involved residential development. The Inspector found that scheme would have an adverse effect of major significance on the landscape character of the area, not just on the site itself. However, that scheme involved a materially different proposal, including a greater number of dwellings and specific concerns about trees and a cul-de-sac arrangement. Therefore, given the significant differences in the scale of the proposal in that case, limited weight is attached to that decision in my consideration of this appeal.
29. In 2023, a scheme for 16 dwellings was dismissed on appeal⁶, with the Inspector finding that the impact of the development would be considerable in relation to character and appearance matters including the effect on the landscape and the NL. The proposal before me now is for two fewer dwellings. However, for the reasons given above, I have come to similar conclusions on landscape matters to that of my colleague in 2023, whilst taking into account the more recent development that has occurred around Longdene House.
30. Although the Grasslands Close development may have been on land within the NL, there is no substantive evidence before me on that scheme. Furthermore, I

⁵ APP/R3650/W/16/3165974

⁶ APP/R3650/W/22/3295573

have limited information on the landscape character or context of that site prior to it being approved, or the policy context in which it was determined. Schemes at Dene End Farm and Sturt Farm Barn are relatively close to the site. However, the proposals and the site contexts, including the relationship with existing built form do not appear comparable to the appeal proposal. Therefore, they do not alter my findings.

31. I therefore conclude that the proposal would be harmful to the landscape character of the site. It would not conserve or enhance the NL or its setting and would result in considerable harm to it. As such, the proposal is contrary to Policy RE3 of LPP1, the aims of which are set out above. The proposal is also contrary to Policies DM1, DM4 and DM15 of Waverley Borough Local Plan Part 2: Site Allocations and Development Management Policies March 2023 (LPP2) and Policy H11 of the NP. These policies seek, amongst other things, that proposals do not harm environmental assets, that landscape character is reinforced by new developments and that the natural beauty and undeveloped character of the open countryside is recognised. The scheme would also conflict with Policies N4:1 and N4:4 of the Framework, as set out above.
32. Policy H1 of the NP is also referred to in the Council's reason for refusal, but this relates to settlement boundaries. Whilst the explanatory text considers landscape matters, the policy itself does not. In any case part of the policy states that development outside the settlement boundaries will be strictly controlled and will only be supported where they otherwise conform with national and local planning policies. Given the Council has identified that the location outside the settlement boundary does not form a reason for refusal in this case, this policy is not directly relevant.

Affordable housing

33. The West Surrey Strategic Housing Market Assessment November 2015 identified an annual requirement of 314 affordable dwellings. The appellants assert that delivery has fallen below that requirement every year for ten years, resulting in a significant shortfall in provision. It is also identified that Waverley is an expensive area to live, with an affordability ratio of 13.42. Average house prices in the Borough are identified as £563,000 in July 2025. For first time buyers, the average price paid is stated as £404,000 and the average monthly rental cost identified as £1,504. The Council has not disputed any of these points.
34. Policy AHN1 of LPP1 requires a minimum provision of 30% affordable housing on all housing developments in non-designated rural areas where the development provides a net increase of 11 dwellings or more. LPP1 Policy AHN3 states the Council will support the provision of new housing to meet the needs of specific groups. Policy H5 of the NP identifies that new residential development should provide dwellings of the type and size needed in the area.
35. Taking account of the eight affordable dwellings that would be secured as social rented units through the UU, this element of the scheme would equate to 57% of the proposed housing being affordable, exceeding the requirement set out in Policy AHN1.
36. The Council accepts that there is a specific need for social rented units. The joint applicant, a registered provider, has set out clearly the need for this type of

development within Waverley, and identified that there is not sufficient provision currently. I have no evidence before me which suggests a contrary position.

37. The UU requires a scheme to be submitted to and approved by the Council in respect of the bedroom numbers for these units through the reserved matters application. The size of these dwellings would also be assessed at reserved matters stage. This allows some flexibility, should some other type of supported living need arise. Whilst it may be the Council's preference to have the bedroom numbers and supported living element confirmed as part of the UU, this confirmation would not be necessary at this stage, given the Council can assess the evidence presented on this at the reserved matter stage.
38. I therefore find that the UU would secure the units as a social rented tenure and the nomination agreement requirement means that the Council can exercise its right to nominate prospective tenants for the units, based on occupancy criteria. The requirement for them not to be occupied until a nomination agreement is entered into by a registered provider and the Council would also be secured.
39. The UU sets out that no more than five of the SBCB plots can be disposed of until a registered provider is the owner of the social rent units and that they also must be practically completed and made ready for occupation prior to the disposition of the final SBCB plot. This provides a trigger point to ensure that this element of the scheme would be provided before completion of the remainder of the scheme.
40. I therefore conclude that sufficient provision for affordable housing would be secured and the proposal would comply with and go beyond the requirements of Policies AHN1 and AHN3 of LPP1 and Policy H5 of HNP, the aims of which are set out above. The proposal would also accord with the Framework which identifies the need for the provision of affordable homes.

Other Considerations

Self-build and custom build plots

41. Under the Self Build and Custom Housebuilding Act 2015 (as amended) local authorities are required to both maintain a register of persons seeking to acquire serviced plots in the area for SBCB housebuilding and to give enough suitable development permissions to meet the identified demand. The Framework also supports the provision of this type of development with it being identified as one of the types of accommodation that is needed for different groups. The remaining six plots proposed would be secured through the UU as SBCB plots.
42. No specific information is before me on the number of individuals/households or groups listed on the Council's Self Build Register, nor the amount of development permissions granted in this respect. However, the Council identified in its Committee Report that there is a substantial and currently unmet need in the borough. An interested party at the hearing identified that he had been on the Self Build Register in Waverley for a considerable number of years without yet being able to obtain a SBCB plot.
43. The Council identify that the indicative size of the proposed SBCB dwellings, being 4 and 5 bedroom units would not adhere to the required housing mix for the area. However, there is a substantial shortfall in provision of this type of dwelling. Furthermore, the size of such houses are very much dependent on the self-builder

who would want to design a dwelling that meets their needs. Additionally, the sizes are indicative. Accordingly, this indicatively larger size of the SBCB dwellings would not weigh against the scheme.

44. In conclusion, the UU would secure the six plots as SBCB development. This would provide a modest but nevertheless important contribution to the delivery of SBCB. In line with Framework Policy HO7, I attribute substantial weight to the benefit of the SBCB plots, which would contribute towards meeting the evidenced accommodation needs of the community.

Whether the SBCB plots would also provide affordable housing

45. The appellants assert that the six proposed SBCB plots would also be affordable housing, meaning that the scheme would provide 100% affordable housing.
46. The main parties agree that the definition provided for 'self-build and custom-build housing' in the Framework Glossary specifically states that such housing can be either market or affordable housing. The principle of providing SBCB plots as affordable housing is therefore no longer disputed between the parties.
47. However, in order for this SBCB element of the scheme to comprise affordable housing, it is necessary to establish whether it would meet the definition of affordable housing set out in the Framework.
48. The Framework Glossary defines affordable housing as housing for sale or rent, for those whose needs are not met by the market (including housing that provides a subsidised route to home ownership and/or is for essential local workers or national military housing needs) and which complies with one or more of the criteria a) social rent, b) other affordable housing for rent, c) discounted market sales housing, d) other affordable routes to home ownership or e) military affordable housing.
49. The appellants assert that the proposal could meet the Framework Glossary definition of affordable housing, under criteria c) or d).
50. Under criterion c) the provision of discounted market sales housing that is sold at a discount of at least 20% below local market value can comprise affordable housing. It states that eligibility is determined with regard to local incomes and local house prices and that provisions should be in place to ensure housing remains at a discount for future eligible households.
51. Criterion d) refers to other affordable routes to home ownership and includes housing that provides a route to ownership for those who could not achieve home ownership through the market, including other low cost homes for sale, at a price equivalent to at least 20% below local market value. It also states that where public grant funding is provided, there should be provisions for the homes to remain at an affordable price for future eligible households, or for any receipts to be recycled for alternative affordable housing provision, or refunded to Government or the relevant authority specified in the funding agreement.
52. The Waverley Borough Council Housing Affordability Study December 2021 (HAS) sets out analysis on the affordability of housing across the borough. It concludes that Waverley is an expensive area with average house prices significantly above the national average.

53. Whilst the planning application is outline with the matters of scale and layout not being considered at this stage, the appellants' submission suggests the proposal would be for four or five bedroom properties with double garages and the proposed site plan, whilst illustrative only in respect of layout, suggests that they could be located on very spacious plots. The six plots are also illustrated as taking up a significant proportion of the overall site.
54. HAS Figure 6 sets out the price of dwellings needed to make affordable home ownership affordable for discounted market sale and/or first homes in Waverley. This data highlights that in the case of a 4+ bedroom dwelling, the estimated new build open market value would be £675,000 whereas an affordable price would be between £340,000 and £487,000 identifying the need for a discount of between 28% and 50%.
55. Whilst this data is five years old and does not refer specifically to SBCB delivery, it does indicate the challenges around affordability for Waverley. There is no evidence before me to suggest that the position set out in HAS Figure 6 has significantly altered in recent years.
56. To overcome the lack of evidence about the provision of affordable SBCB developments, the appellants propose a discount against local market values, assessed against the prevailing market conditions at the time the plots were sold.
57. However, there is no evidence before me on the current open market value of the plots. There is no valuation provided, and no other information on what other similar sized plots have sold for on the open market recently. There is therefore no indication as to what a 20% or higher discount on the plot value might result in, in terms of a discounted price for the plot.
58. The discount would only relate to the purchase price of the plot. It is necessary to consider how much it would cost to deliver a dwelling in this area. No estimated build cost figures have been provided in order to determine what the anticipated cost of developing a SBCB dwelling in this location might be. This will be dependent on the design, size and scale of the dwelling proposed and will be subject to the input from the SBCB developer. The illustrative details suggest that the development could result in six large, detached dwellings on generous plots which may result in more significant construction costs. However, without any information on estimated potential build costs it is not clear what this element of the scheme might amount to.
59. It is asserted that the cost of building a SBCB dwelling can be less than building a conventional developer led dwelling, due to the removal of developer profit margins and costs associated with new build premiums and sales, marketing and overhead costs, exemptions from Community Infrastructure Levy (CIL), the ability to reclaim VAT on labour and materials, the provision of government backed loans through the Home Builders Fund, and the management of the project being led by the SBCB developer, who can control costs and carry out some of the work themselves.
60. I am referred to an appeal decision at St Edmunds Lane, where the Inspector stated that the evidence in that case indicated that SBCB development can be 20-55% cheaper than ordinary housing and even cheaper than new housing. However, I do not have any of the evidence before me that was presented in that case. That appeal was determined eleven years ago and I have not been provided

with any up to date information that sets out potential cost savings in terms of figures or percentages. Whilst there may be cost savings through the delivery of this type of dwelling, I cannot be sure how much those costs savings might be estimated at, based on the evidence before me.

61. The UU allows for a discount of 20% on the plot value compared with the current market value, or a higher discount if I should find that to be appropriate. However, due to the lack of evidence before me on the current market value of the plot, and estimated potential build costs, including any potential cost savings that might apply, it is not clear what discount would be necessary in order to make the SBCB plots genuinely affordable in line with the Framework Glossary definition, as opposed to providing a cheaper option that would not necessarily meet the needs of those whose needs are not being met by the market.
62. With regard to eligibility, as stated above, the Framework identifies that affordable housing should be for those whose needs are not met by the market. The UU defines a 'Qualifying Person' as a person or household which meets the Council's requirements to be entered on the Self Build Register. In addition, if I were to find it necessary, the UU definition could also include that the person or household would be nominated by the Council to ensure eligibility under the definition of affordable housing.
63. There would need to be a way to establish that the individual or household purchasing the plot would be eligible under the definition of affordable housing, given that without that requirement, there would be no way of ensuring that the plot would be sold to someone whose needs are not being met by the market.
64. The Council's Affordable Housing SPD identifies an £80,000 household income cap but this applies specifically to shared ownership housing products. There is no information on what would be an appropriate household income threshold that could inform eligibility criteria for SBCB developments.
65. I have concerns about how that nomination process identified in the UU would function. There is no evidence on what that nomination process would be measured against. It is not clear that the level of information provided by those on the Self Build Register would enable a clear way for the Council to establish that the individual or household would be eligible for affordable housing. Without evidence to the contrary, it appears likely that there would be a need for a separate process in which potential purchasers are able to demonstrate that their needs are not being met by the market.
66. There is no clear evidence before me on how this might be implemented or operated. As a result, the lack of a clear approach at the outset in this respect is likely to frustrate the marketing period, with the eligibility testing likely to be complex thereby causing delays and thwarting the progress of the sale of the plots.
67. Consequently, it has not been demonstrated that the six proposed SBCB dwellings would provide affordable housing in line with the definition set out in the Framework.
68. There was some discussion at the hearing and in the evidence about whether the SBCB plots could be secured as affordable housing in perpetuity. The UU is not clear in this respect. For instance, it does not plainly set out what happens once

the plot has been sold, and the SBCB dwelling has been delivered. A future purchaser, once the dwelling has been built could not meet the Qualifying Person definition, because they could not meet the SBCB requirements. However, given that it has not been demonstrated that the SBCB plots would be affordable housing, the matter of perpetuity is not determinative in my decision and therefore I have not considered this matter further.

69. Under the UU, if any of the SBCB plots were not sold during the marketing period, they would revert to being open market SBCB plots. Once sold, the UU requires a sum amounting to the equivalent of the discount that would have been applied to the market value if it had been sold as a discounted plot, to be paid to the Council to be used for the provision of affordable housing.
70. LPP1 Policy AHN1 allows for an alternative to on-site provision of affordable housing, but only in exceptional circumstances. This contribution would go above and beyond the requirements of the policy as eight units would be secured as affordable housing. However, without having any figures before me on the estimated market value of the plot, it is not clear what this additional contribution might equate to in terms of an amount.
71. The appeal decision at St Edmunds Lane has some similarities of approach. However, there is no analysis provided on whether that scheme resulted in the SBCB plots being sold as affordable housing and whether the approach was successful in this respect. That case was also in a different Council area, with a different policy context. This does not alter my findings.
72. Although the proposed six plots would be secured for the delivery of SBCB dwellings and the UU would ensure that the SBCB plots would be cheaper than market value, there is insufficient information for me to conclude that they would meet the needs of those whose needs are not being met by the market. Therefore, it has not been demonstrated that they would provide affordable housing.
73. Given that it has not been demonstrated that the proposal would provide a 100% affordable housing scheme, the proposal should not be treated as a rural exception site as suggested by the appellants.

Planning Balance

74. Section 38(6) of the Planning and Compulsory Purchase Act 2004 requires planning applications to be determined in accordance with the development plan unless material considerations indicate otherwise.
75. I have found above that the proposal would conflict with Policy RE3 of LPP1, Policies DM1, DM4 and DM15 of LPP2 and Policy H11 of the NP in respect of landscape matters and the effect on the NL and its setting. These policies are in general consistency with the aims of the Framework in seeking to avoid harm to the statutory purposes and special qualities of the NL, and that proposals should contribute positively to the natural environment through considering the environmental qualities of landscape character and the natural beauty of the countryside.
76. Framework Policy S3 sets out that decisions on development proposals should apply a presumption in favour of sustainable development. For developments outside settlements, such as the appeal proposal, Policy S5 should be applied.

Policy S5:1 identifies that outside settlements, only certain forms of development should be approved as set out under criteria a. – j., unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies set out in the Framework. I am referred to criteria h. and j. set out under Framework Policy S5:1 as being relevant to the appeal proposal.

77. Criterion h. identifies residential development which would be within reasonable walking distance of a well-connected station, that is physically well-related to the station or the settlement within which the station is located, of a scale which can be accommodated taking into account existing and proposed infrastructure availability and that long term comprehensive development is not prejudiced.
78. There is no dispute between the parties that the site would be within reasonable walking distance of Haslemere train Station which is considered to be a well-connected station. The first part of criterion h. is therefore met.
79. The Council however contend that the site would not be physically well-related to the station or the settlement where the station is located. Notwithstanding that I have found harm in relation to landscape matters above, the site sits directly adjacent to the settlement, with access into the site already present from the adjacent built up area. I therefore find that in the context of criterion h., the site would be physically well-related to the settlement, in proximity and spatial connectivity terms.
80. There is no evidence before me that there would not be sufficient infrastructure for the scale of development proposed nor that any other long term development would be prejudiced. The proposal would therefore comply with the requirements of Framework Policy S5:1 h. Given my findings on Policy S5:1 h. I have not gone on to consider the appeal against Policy S5:1 j.
81. As the requirements under Framework Policy S5:1 h. would be met, it falls for me to undertake a balance of the benefits against the harms, considering whether the benefits would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies set out in the Framework.
82. The proposal would result in the provision of 14 dwellings. Whilst there is insufficient evidence to confirm that the SBCB plots would be affordable housing, the proposal would provide eight social rented units which would constitute affordable housing, which would amount to 57% of the scheme. This amount of affordable housing would exceed local requirements. The remaining six plots would be appropriately secured as SBCB through the UU.
83. Policy HO7 of the Framework directs that substantial weight should be given to the benefits of providing homes which will contribute towards meeting the evidenced accommodation needs including homes for different groups, including affordable housing and SBCB provision.
84. The parties agree that the Council cannot demonstrate a sufficient housing land supply, with the figure identified as 1.28 years currently. Based on the evidence before me this shortfall is persistent. Given the significant shortfall in both housing land supply, affordable housing provision and the substantial shortfall in the provision of SBCB plots and that the affordable housing contribution would go

above and beyond the LP requirement, these benefits attract substantial weight in favour of the proposal.

85. There would also be economic benefits during the construction phase and after with future occupants spending in the local area. There would be social benefits from new households supporting services and facilities in the local community. I attribute moderate weight to these benefits, given the scale of the scheme.
86. There would be some environmental benefits through the provision of landscaping, the reinforcement of existing vegetated boundaries and the delivery of biodiversity net gain in excess of 10%. Given the scale of the scheme I attribute limited weight to these benefits.
87. Overall, the aforementioned economic, social and environmental benefits would comprise substantial benefits in the balance in this case.
88. I am referred to Framework Policy L3:2 c. which states that where residential developments are within reasonable walking distance of a well-connected station, such as the site, a density of at least 35 dwellings per hectare should be achieved. The proposal would result in a lower density than this Framework standard. However, that policy allows for exceptions where it is demonstrated that meeting the standard would be inappropriate or not possible. The Council has not objected to the proposal on density grounds, and given the location of the site, being within the NL and its setting, applying such a density requirement would be inappropriate in this case. Therefore, the proposed density is a neutral consideration that weighs neither for nor against the proposal.
89. With regard to the adverse effects, the proposal would result in considerable harm to the landscape character of the site with built development in this location fundamentally altering its landscape value, also resulting in harm to the AGLV. It would also lead to considerable harm to the NL and its setting, meaning that it would fail to avoid harm to the Protected Landscape and it would not conserve or enhance the natural beauty of the area, conflicting with Framework Policies N4:1 and N4:4. It would also fail to further the purposes of conserving and enhancing the natural beauty of the NL, as required by the Act.
90. The permanence and irreversibility of the harm that would result to the NL as a Protected Landscape and to its setting, and the conflict with the Framework in this respect attracts substantial weight of such magnitude that it would substantially outweigh the substantial benefits that I have identified in this case.

Other Matters

91. I am referred to other appeal decisions where the sites were also subject to the NL designation. At land off Midhurst Road at Scotland Park⁷, a scheme for 112 dwellings, community growing space and associated infrastructure, access alterations, car park, landscaping and drainage, a scout facility/nursery, an education facility and a Suitable Alternative Natural Greenspace was allowed on appeal. In the appeal at Clock House Lane⁸ the scheme was for 2 dwellings. Neither appeal is directly comparable in scale and nature to the appeal before me.

⁷ APP/R3650/W/23/3327643

⁸ APP/R3650/W/25/3361061

92. Interested parties made comments during the planning application, more than half of which were in support of the proposal. No objections were raised by the Town Council. I have considered the matters raised by those responses in support throughout my assessment of the appeal. However, they do not alter my conclusions.
93. The appeal site is within the 5km buffer of the Wealden Heaths I Special Protection Area (SPA) and the Wealden Heaths II SPA which are European sites protected by the Conservation of Habitats and Species Regulations 2017 (as amended). Given that I am dismissing the appeal on the main issues, I have not considered this matter further.

Conclusion

94. The proposal would conflict with the development plan as a whole and there are no other considerations, including the Framework, which indicate a decision other than in accordance with the development plan. The appeal is therefore dismissed.

G Dring

INSPECTOR

APPEARANCES

FOR THE APPELLANT:

Andrew Cook	Pegasus Group
Charles Banner KC	Keating Chambers
Gary Stevens	Planit Consulting
Alfred Lawson	Monkhill Ltd
Ian Rhodes	Monkhill Ltd
Tim Johnson	Solicitor – Peningtons Manches Cooper
Suzanne Edwards	Transform Housing & Support
Natalie Murphy	Transform Housing & Support
Paul Quantrill	Independent Architectural Designer & on the Self Build Register for Waverley

FOR THE LOCAL PLANNING AUTHORITY:

Joanne Hollingdale	Development Management Team Leader MRTPI
Clive Smith	Surrey Hills National Landscape Advisor

INTERESTED PARTIES:

John Hutchinson	Local Resident
Guy Reynolds	Local Resident
David Pope	Local Resident
Peter Nicholson	Ward Councillor